28.01 Company Secretary

A company is an artificial being, though a company is a legal entity; it has no physical personality such as neither a mind nor body of its own. Though not visible, company having an image or appearance exists only with its rules and by laws. Any company cannot act by itself; it needs one or group of people to operate it. Besides operating the company there are numbers of functions holding responsibility and need to take care such as directing the work force towards productivity, managing the smooth functioning, supervising the overall performance of the company. The person who is responsible for the general performance of an organization is called company secretary. The Key Managerial Personnel (KMP) who run a company is called with different titles viz, directors, managers, or secretary.

The word secretary has originated in Latin. The Latin word 'Secretarius' which means secret. As we know secret refers to something, which is not disclosed and kept as confidential. Some Information should be kept very confidential in all the companies. Hence, a person is appointed to perform activities which are confidential in nature and manage the day-to-day business of the company. The person who steers the company holding the administrative, financial, and overall performance of the company is called company secretary.

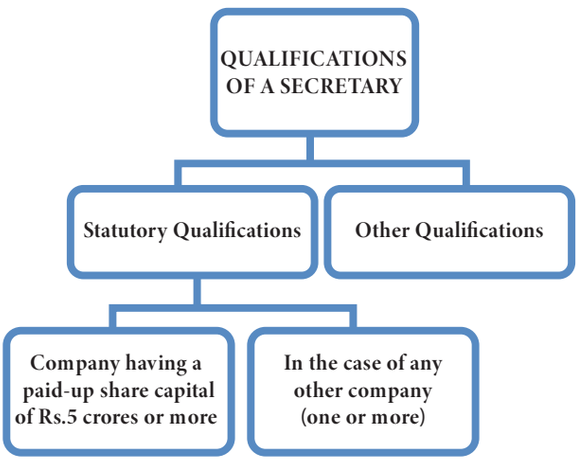
According to Section 2(24) of the Companies Act, 2013 defines "Company Secretary" or "Secretary" means any individual possessing the prescribed qualifications, appointed to perform the duties which may be performed by a secretary under this Act and any other ministerial or administrative duties".

According to explanation from Oxford Dictionary, "a secretary is a person who is employed to conduct correspondence on behalf of an individual or a company and also to execute filing, documentation and administrative functions".

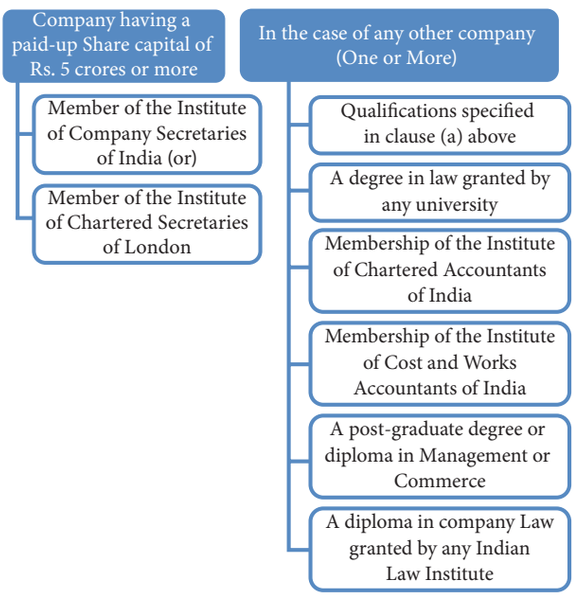
28.02 Qualifications of Company Secretary



Since the amendment of the Companies Act in 1994, only a person having prescribed qualifications can be appointed secretary of a company. Apart from the statutory qualifications, he should also have other qualifications as may be necessary to conduct the affairs of the company.



28.02.01 Statutory Qualifications



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